

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 16
JUDICIAL OFFICER: BENJAMIN REYES, II
HEARING DATE: 12/17/2025

**INSTRUCTIONS FOR CONTESTING TENTATIVE RULING IN
DEPARTMENT 16**

The tentative ruling will become the ruling of the Court unless by 4:00 P.M. of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 16 (Dept16@contracosta.courts.ca.gov) to request argument and **must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why**. Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00 P.M. of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

The prevailing party must prepare and e-file a proposed order after hearing in accordance with CRC 3.1312. The order must include appearances. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED THAT PROPER NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER ABOVE.

Zoom link-

<https://www.zoomgov.com/j/1619504895?pwd=NOV1N3JFRnJ0TEVoSDNrTGRzakF3UT09>

ID: 161 950 4895

Password: 812674

Courtroom Clerk's Session

1. 8:31 AM CASE NUMBER: MSL20-06032
CASE NAME: ROMON CALHOUN VS. RELIANT PROPERTY MANAGEMENT, INC. (PREVIOUSLY RELIANT PROPERTY MANAGEMENT, LLC)
HEARING ON ORDER TO SHOW CAUSE IN RE: WHY THE COURT SHOULD NOT DISMISS THIS CASE PER THE 5-YEAR STATUTE OF LIMITATIONS.

FILED BY:

TENTATIVE RULING:

The Parties and/or Counsel are ordered to appear at the Hearing in person or via Zoom on the Order to Show Cause as to why this case should not be dismissed pursuant to Cal. Code of Civ. Proc. § 583.310.

The Court takes judicial notice of its own files and the register of actions pursuant to California

Evidence Code section 452(d)(1). A review of the register of actions and the files in this matter confirms that plaintiff Romon Calhoun commenced this limited jurisdiction action on December 17, 2020.

California Code of Civil Procedure section 583.310 provides that an action shall be brought to trial within five years after the action is commenced against the defendant. Accordingly, the five-year period for bringing this action to trial expires on December 17, 2025, the day of this hearing. The trial court lacks discretion to retain jurisdiction beyond this statutory period. As decisional authority makes clear, a trial court's discretion is not unlimited and must be exercised in conformity with the spirit of the law and in a manner to subserve, rather than impede or defeat, the ends of substantial justice. (*Coe v. City of Los Angeles* (1994) 24 Cal.App.4th 88.)

The five-year statutory period is subject to tolling where, for all practical purposes, going to trial would be impossible, whether due to a total lack of jurisdiction in the strict sense or because proceeding to trial would be both impracticable and futile. The purpose of the statute is to prevent avoidable delay for an undue period, not to arbitrarily close the proceedings at the expiration of five years in every case. Whether a proceeding is impossible, impracticable, or futile must be determined in light of all the circumstances of the individual case, including the acts and conduct of the parties and the nature of the proceedings themselves. The critical factor in applying these exceptions to a given factual situation is whether the plaintiff exercised reasonable diligence in prosecuting his or her case. (*Hill v. Bingham* (1986) 181 Cal.App.3d 1.)

Here, the record is devoid of facts supporting reasonable diligence, tolling or extenuating circumstances that would justify the delays in bringing this case to trial. After reviewing plaintiff Romon Calhoun's 64-page declaration, the Court finds that while plaintiff was represented by counsel, he managed this litigation and exercised reasonable diligence in prosecuting his case. He filed an initial complaint, which was amended three times, and the parties engaged in discovery and motion practice over the last five years. The case was previously set for trial at least once by the Court. However, since plaintiff has proceeded as a self-represented litigant, he has failed to act with the requisite diligence in preparing this case for trial, beyond conducting some initial discovery. The record further suggests that plaintiff has not cooperated with discovery conducted by defendants, which prompted an additional discovery motion to be heard on December 17, 2025—the final day to bring this case to trial.

Plaintiff's contention that the COVID-19 pandemic warrants tolling is unavailing. Statewide court rules extended the time for trial by six months for actions filed before April 6, 2020. This action, filed on December 17, 2020, was not subject to that extension. Plaintiff also argues that the assignment of several different judges during the litigation contributed to the delays. However, a review of the record indicates that plaintiff was not diligent in pursuing a trial after its initial setting.

Based on the foregoing, the Court's tentative ruling is as follows: This action is **dismissed with prejudice pursuant** to California Code of Civil Procedure section 583.310. This order of dismissal is stayed pending the outcome of plaintiff's appeal currently pending before the Superior Court on the ruling denying his motion to reclassify this case.